



File No.: EXP202213101

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on November 15, 2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible breach of the provisions of Article 13 of the GDPR and Article 6.1 of the GDPR.

The reasons supporting the complaint are as follows:

The complainant states that the respondent has installed a video surveillance system above their door, capturing common areas of the building in which both the complainant and the respondent have their residences, as well as the entrance to the complainant's residence, without authorization from the Community of Owners, which, although not formally constituted, exists due to the horizontal division of the building and the existence of different residences within the building.

It also points out that the video surveillance system is not adequately signposted, as it has a sign indicating a monitored area that refers to the repealed data protection law and does not include a reference to the data controller or the address to which to direct requests for exercising rights.

It also indicates that the respondent has presented images from the claimed video surveillance system in court, as well as images of recordings made of the complainant and their family members in private settings.

It provides images of the camera's location, the monitored area sign, and the documentation submitted in court.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer and request for information was notified to the respondent on December 27, 2022, by postal means, in accordance with the provisions of Articles 41 and 42 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, as evidenced by the delivery receipt in the file.

The respondent has not responded to the transfer and request for information notified.

THIRD: On February 15, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On May 31, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which, in summary, they stated that:

"FIRST.- That the main basis of the acting Administration for agreeing to initiate the sanctioning procedure is that 'the respondent has not responded to the transfer and request for information notified.'

Well, it should be noted that this Agency, to which I have the honor of addressing, said with all due respect and in terms of defense, has not taken into account that the declarant, in a timely manner, on January 30, 2023, in compliance with the Request for Information sent prior to the declarant, through the Office and Registry of the Hon. City Council of Puerto del Rosario, submitted the corresponding Responsible Declaration directed to this Agency, in which my client stated that the indicated cameras

do not allow for the viewing or recording of images, as they are simulated cameras and not operational, as they serve as a deterrent against the wave of illegal occupation that is affecting our country and, very specifically, the island of Fuerteventura.

As proof of the statement, I attach as document No. 2, the Proof of Submission of the aforementioned Responsible Declaration, issued by the Office and Registry of the Hon. City Council of Puerto del Rosario.

SECOND.- That, on another note, it should be noted that the complainant and the declarant maintain poor neighborly relations, even leading to a trial over a minor offense, but in no case and under no circumstances was any video recording provided by the declarant in the judicial procedure, as is recorded in the file itself, since they are only statements from the declarant lacking any evidence as they did not provide proof that audiovisual recordings were used in the judicial procedure, as it is entirely impossible since the cameras mentioned are simulated.

As proof of the statement, I attach:

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- As document no. 3, Judgment dated December 1, 2022, issued in the procedure Minor Offense Trial no. 655/2022, in which no mention is made of any recording provided by the complainant.

FIFTH: On July 5, 2023, a resolution proposal was made, proposing that the Director of the Spanish Agency for Data Protection proceed to archive the proceedings initiated against B.B.B., with NIF ***NIF.1, for a violation of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, and for a violation of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

From the actions taken in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: It is recorded, according to the statement of the complaining party, that the responding party has installed a video surveillance system over their door, capturing common areas of the building in which both the complaining party and the responding party have their residence, as well as the entrance to the residence of the complaining party.

SECOND: It is recorded, according to the statement of the complaining party, that the video surveillance system is not adequately signposted, as it has a sign indicating a monitored area that refers to the repealed data protection law and does not include a reference to the data controller and the address to which to direct requests for the exercise of rights.

THIRD: It is recorded, according to the statement of the responding party, that the indicated cameras do not allow for the viewing or recording of images, as they are simulated cameras and are not operational, being merely a form of deterrent prevention against possible illegal entries into the residence.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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In response to the allegations presented by the responding party, the following should be noted:

- The responding party alleges that, on January 30, 2023, in compliance with the Information Request sent prior to the complainant, they submitted the corresponding Responsible Declaration addressed to this Agency, through the Office and Registry of the Hon. City Council of Puerto del Rosario, in which they stated that the indicated cameras do not allow for the viewing or recording of images, as they are simulated cameras and are not operational, as they are merely a form of deterrent prevention against the wave of illegal occupation affecting our country and, specifically, the island of Fuerteventura.
- In this regard, this Agency reminds that, even in the case of a "simulated" camera, it must be preferably oriented towards private space, as it is considered that this type of device can affect the privacy of third parties, who feel intimidated by it under the belief that they are subject to permanent recording.

It is also noted that, although this documentation was not received prior to the initiation of the present Sanctioning Procedure, by providing proof of its submission at the Registry Office of the City Council, this documentation is taken into consideration at the present time and, in view of its content, it is considered that since it is a camera that is not capturing images, no data processing is being carried out, and therefore, no infringement of data protection regulations is observed.

III

Article 5.1 c) of the GDPR states the following: Personal data shall be: "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')." Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing, only the relevant personal data that is appropriate and strictly necessary may be processed.

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to fulfill the purpose for which they are processed. The processing must be adequate and proportional to the purpose it aims at. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing that is carried out.

In this case, since it concerns a non-operational camera, therefore merely deterrent, not connected and not processing any data, it is considered appropriate to archive the present sanctioning procedure, and it is also not necessary for said camera to be signposted, precisely because no data processing is being carried out.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to B.B.B. with NIF ***NIF.1

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6

of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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